

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

ELBERT PARR TUTTLE COURT OF APPEALS BUILDING
56 Forsyth Street, N.W.
Atlanta, Georgia 30303

David J. Smith
Clerk of Court

For rules and forms visit
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December 27, 2023

MEMORANDUM TO COUNSEL OR PARTIES

Appeal Number: 23-13396-B

Case Style: American Securities Association, et al v. U.S. Securities and Exchange
Commission

Agency Docket Number: 34-98290

Electronic Filing

All counsel must file documents electronically using the Electronic Case Files ("ECF") system, unless exempted for good cause. Although not required, non-incarcerated pro se parties are permitted to use the ECF system by registering for an account at www.pacer.gov. Information and training materials related to electronic filing are available on the Court's website.

Pursuant to Fed.R.App.P. 17, be advised that the record is complete for purposes of appeal. PETITIONER'S BRIEF IS DUE January 8, 2024. PETITIONER'S APPENDIX IS DUE NO LATER THAN 7 DAYS AFTER FILING OF PETITIONER'S BRIEF.

This is the only notice you will receive concerning the due date for filing briefs and appendices. See Fed.R.App.P. 28, 30, 31, 32, the corresponding circuit rules, General Order 39 and the Guide to Electronic Filing for further information. Pro se parties who are incarcerated are not required to file an appendix.

If you have not entered your appearance in this appeal, please note that the clerk may not process your filings. See 11th Cir. R. 46-6. [Appearance of Counsel Forms](#) are available on the court's Web site.

A certified list of documents comprising the record on appeal is enclosed to pro se parties only. Petitioner and respondent are requested to use their own file copies of the administrative agency papers in preparing the brief and appendix.

Attorneys must file briefs electronically using the ECF system. Use of ECF does not modify the requirements of the circuit rules that counsel must also provide four (4) paper copies of a brief to the court, nor does it modify the requirements of the circuit rules for the filing of appendices in a particular case.

Clerk's Office Phone Numbers

General Information:	404-335-6100	Attorney Admissions:	404-335-6122
Case Administration:	404-335-6135	Capital Cases:	404-335-6200
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BR-3ACIV Agency briefing ntc issued